

Massachusetts Department of Environmental Protection
Bureau of Resource Protection - Wetlands

DEP File Number:

WPA Form 4B – Order of Resource Area Delineation

338-0594

Provided by DEP

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

AND Westwood Wetland Protection Bylaw, Article 18

A. General Information

From:

Westwood Conservation Commission
Conservation Commission

This Issuance is for (check one):

- ☒ Order of Resource Area Delineation
☐ Amended Order of Resource Area Delineation

To: Applicant:

Anthony Delapa/Delapa Properties

Name

511 Washington Street

Mailing Address

Norwood

MA

02062

City/Town

State

Zip Code

Property Owner (if different from applicant):

Salvatore Vinci

Name

67 Hazelwood Drive

Mailing Address

Norwood

MA

02062

City/Town

State

Zip Code

1. Project Location:

42 Mill Street

Street Address

28

Assessors Map/Plat Number

Westwood

City/Town

013

Parcel /Lot Number

2. Title and Date (or Revised Date if applicable) of Final Plans and Other Documents:

WETLAND DELINEATION PLAN 42 MILL STREET WESTWOOD
MASSACHUSETTS

10/27/14

Date

Title

Date

Title

Date

3. Dates:

11/10/14

Date Notice of Intent Filed

10/28/15

Date Public Hearing Closed

11/9/15

Date of Issuance

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B. Order of Delineation

The Conservation Commission has determined the following (check whichever is applicable):

- ☐ **Accurate:** The boundaries described on the referenced plan(s) above and in the Abbreviated Notice of Resource Area Delineation are accurately drawn for the following resource area(s):

☐ Bordering Vegetated Wetlands

☐ Other Resource Area(s), specifically:

- ☐ **Modified:** The boundaries described on the plan(s) referenced above, as modified by the Conservation Commission from the plans contained in the Abbreviated Notice of Resource Area Delineation, are accurately drawn from the following resource area(s):

☐ Bordering Vegetated Wetlands

☐ Other Resource Area(s), specifically:

- ☒ **Inaccurate:** The boundaries described on the referenced plan(s) and in the Abbreviated Notice of Resource Area Delineation were found to be inaccurate and cannot be confirmed for the following resource area(s):

☒ Bordering Vegetated Wetlands

☒ Other Resource Area(s), specifically:

Perennial Stream and potential Vernal Pool

The boundaries were determined to be inaccurate because:

inaccuate delineation and incorrect stream determination

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Delineation**

Massachusetts Wetlands Protection Act M.G.L. c. 131, §40

C. Findings

This Order of Resource Area Delineation determines that the boundaries of those resource areas noted above, have been delineated and approved by the Commission and are binding as to all decisions rendered pursuant to the Massachusetts Wetlands Protection Act (M.G.L. c.131, § 40) and its regulations (310 CMR 10.00). This Order does not, however, determine the boundaries of any resource area or Buffer Zone to any resource area not specifically noted above, regardless of whether such boundaries are contained on the plans attached to this Order or to the Abbreviated Notice of Resource Area Delineation.

This Order must be signed by a majority of the Conservation Commission. The Order must be sent by certified mail (return receipt requested) or hand delivered to the applicant. A copy also must be mailed or hand delivered at the same time to the appropriate DEP Regional Office (see <http://www.mass.gov/eea/agencies/massdep/about/contacts/find-the-massdep-regional-office-for-your-city-or-town.html>).

D. Appeals

The applicant, the owner, any person aggrieved by this Order, any owner of land abutting the land subject to this Order, or any ten residents of the city or town in which such land is located, are hereby notified of their right to request the appropriate DEP Regional Office to issue a Superseding Order of Resource Area Delineation. When requested to issue a Superseding Order of Resource Area Delineation, the Department's review is limited to the objections to the resource area delineation(s) stated in the appeal request. The request must be made by certified mail or hand delivery to the Department, with the appropriate filing fee and a completed Request for Departmental Action Fee Transmittal Form, as provided in 310 CMR 10.03(7) within ten business days from the date of issuance of this Order. A copy of the request shall at the same time be sent by certified mail or hand delivery to the Conservation Commission and to the applicant, if he/she is not the appellant.

Any appellants seeking to appeal the Department's Superseding Order of Resource Area Delineation will be required to demonstrate prior participation in the review of this project. Previous participation in the permit proceeding means the submission of written information to the Conservation Commission prior to the close of the public hearing, requesting a Superseding Order or Determination, or providing written information to the Department prior to issuance of a Superseding Order or Determination.

The request shall state clearly and concisely the objections to the Order which is being appealed and how the Order does not contribute to the protection of the interests identified in the Massachusetts Wetlands Protection Act, (M.G.L. c. 131, § 40) and is inconsistent with the wetlands regulations (310 CMR 10.00). To the extent that the Order is based on a municipal bylaw or ordinance, and not on the Massachusetts Wetlands Protection Act or regulations, the Department of Environmental Protection has no appellate jurisdiction.

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338-0594
MassDEP File Number

eDEP Transaction Number

Westwood
City/Town

11/9/15
Date of Issuance

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1. Number of Signers

E. Signatures

Please indicate the number of members who will sign this form.

Signature of Conservation Commission Member

Signature of Conservation Commission Member

Signature of Conservation Commission Member

Signature of Conservation Commission Member

Signature of Conservation Commission Member

Signature of Conservation Commission Member

Signature of Conservation Commission Member

This Order is valid for three years from the date of issuance.

If this Order constitutes an Amended Order of Resource Area Delineation, this Order does not extend the issuance date of the original Final Order, which expires on _____ unless extended in writing by the issuing authority.

This Order is issued to the applicant and the property owner (if different) as follows:

2. ☐ By hand delivery on _____

a. Date

3. ☒ By certified mail, return receipt requested on _____

a. Date

11/9/15